

Court No. - 3

Case :- WRIT - C No. - 6242 of 2022

Petitioner :- Central Public Academy

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Prashant Pratap Rao, Ankur Mehrotra

Counsel for Respondent :- C.S.C., Devesh Vikram

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard learned counsels for the parties.

This writ petition has been filed praying for the following relief:

"a) Issue a writ, order or direction in the nature of certiorari quashing the order dated 31.7.2021 directing for recovery of a sum of Rs. 32,03,199/ as alleged electricity dues from the petitioner (Annexur no.1 to this writ petition)."

Sri Devesh Vikram, learned counsel for the respondent No. 2/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed of** giving liberty to the petitioner to submit its objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent No. 2, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.2 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

Order Date :- 17.5.2022

sfa/